

STATE OF COLORADO

STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS

Amos D. Martinez, Program Director

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Department of Regulatory Agencies

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Division of Registrations

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Bill Owens
Governor

May 27, 2005

Millicent Kay Spears, LPC
5102 Galley Road, #207A
Colorado Springs, CO 80915

RE: Complaint Filed by FP
Case #2005-002349
Letter of Admonition

Dear Ms. Spears:

At its meeting on May 20, 2005, the Colorado Board of Licensed Professional Counselor Examiners (Board) reviewed the available material concerning the complaint filed against you by FP. This is the first step in deciding whether to institute a formal proceeding for discipline.

After thorough review and discussion, the Board found probable cause to believe you violated CRS 12-43-218 and 12-43-222(1)(g) and (u) and issued this Letter of Admonition in accordance with CRS 12-43-224 (3)(d). Specifically, the Board determined:

You failed to act according to generally accepted standards for a licensed professional counselor, failed to maintain adequate records and failed to maintain client confidentiality.

On the basis of the above findings, the Board hereby admonishes you for such practice and warns you that repetition of such practice may lead to imposition of more severe disciplinary action. This letter is an open public record and a reportable action to individuals or entities requesting disciplinary information. The Board strongly encourages you to review and understand the Mental Health Practice Act requirements and obligations for the practice of psychotherapy in Colorado.

In accordance with CRS 12-43-224(3)(d), the Board advises you that you have the right to make a written request that the Board initiate formal disciplinary proceedings in order to adjudicate the conduct or acts upon which this letter is based. You must make your written request within twenty (20) days after receipt of this letter and address your request to Amos D. Martinez, Program Director, at the above letterhead address. If you make a timely request, the Board will deem this letter of admonition vacated and may proceed with disciplinary and/or injunctive proceedings in accordance with CRS 12-43-224(3)(d), and applicable rules.

If this letter is not vacated, it will become the final agency action in this matter.

Sincerely,

Cindy Musil
Board Chair